

of section one hundred and five of the Public Health (London), Act, 1891 : 54 & 55 Vict.  
c. 76.

Provided that a county council may, if they think fit, charge all expenses under this Act or those Acts as general county expenses subject to the condition that, if any district council within the county has provided for its district a similar service to that provided by the county council for other parts of the county, the county council shall pay to the district council the amount raised by the county council in the district in respect of such service. Any question that may arise between a county council and a district council under this proviso shall be determined by the Local Government Board.

4. Section three of the Notification of Births (Extension) Act, 1915, shall be read as if the following words were inserted at the end of paragraph (b) of subsection (1) and paragraph (b) of subsection (2) thereof, namely :— Amendment of  
s. 3 of  
5 & 6 Geo. 5.  
c. 64.

“ and for the purpose of any such arrangements may,  
“ subject to the sanction aforesaid, exercise the like powers  
“ as they are entitled to exercise for the purpose of the  
“ provision of hospitals.”

5.—(1) This Act may be cited as the Maternity and Child Welfare Act, 1918. Short title and  
application.

(2) This Act, except the section thereof providing for the amendment of section three of the Notification of Births (Extension) Act, 1915, shall not apply to Scotland or Ireland.

## CHAPTER 30.

An Act to amend the Law relating to Naval Prize of War.  
[8th August 1918.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) If His Majesty is pleased by Proclamation or Order in Council to signify his intention to make a grant of prize money out of the proceeds of prize captured in the present war, the sums which have been or may be received in respect of ships and goods captured during the present war specified in Part I. of the schedule to this Act shall (subject as respects money in any prize court to the assent of that court) be paid as and when the Treasury and Admiralty jointly direct into a separate fund to be called the Naval Prize Fund, and there shall be charged on and payable out of the Naval Prize Fund all such costs, charges, expenses, and claims as are mentioned Application of  
proceeds of  
prizes being  
the droits of  
the Crown.

in Part II. of the said schedule, and any question whether any sum is payable into or out of that fund shall be determined by the Tribunal hereinafter constituted.

(2) Subject to the payment of such costs, charges, expenses, and claims as aforesaid, such sum as may be required for the payment of prize money under this Act shall be a first charge on the Naval Prize Fund, and such prize money shall be of such amounts and payable to such members of His Majesty's Naval and Marine forces as hereinafter defined, or in the case of their death their representatives, and in such manner, as His Majesty may by Proclamation or Order in Council determine.

(3) The residue of the said Fund may be applied towards any of the purposes for which provision may be made by Greenwich Hospital, and also, subject to regulations made by the Admiralty, may be applied for the benefit of members and dependants of members of forces raised and provided by the Governments of parts of His Majesty's dominions outside the United Kingdom.

27 & 28 Vict.  
c. 24.

(4) Section seventeen of the Naval Agency and Distribution Act, 1864 (which requires forfeited and unclaimed shares and balances of prize money, and a percentage of the proceeds of prize and prize money to be carried to the naval prize cash balance) shall not apply to sums payable into the Naval Prize Fund or to any prize money payable out of that Fund, but any forfeited and unclaimed shares and balances of such prize money may be applied for the purposes for which the residue of the said Fund is applicable, without prejudice, however, to the rights of any person who may subsequently establish a claim thereto, and no ship's agent shall be entitled to any share in the money so distributed, anything in section nineteen of the Naval Agency and Distribution Act, 1864, to the contrary notwithstanding; but, save as aforesaid, and subject to the provisions of this Act with respect to the investment of funds standing to the credit of the Naval Prize Fund, the Naval Agency and Distribution Act, 1864, shall so far as applicable apply to the sums distributable out of the Naval Prize Fund and the distribution of those sums.

(5) The Naval Prize Fund shall be under the control of the Admiralty, and payments into and out of that fund and all matters relating to the fund shall be made and regulated in such manner as the Admiralty direct, and any sum standing to the credit of the Fund may be temporarily invested in such manner as the Treasury may authorise, and the accounts of the receipts and expenditure of the fund shall be made up at such times, in such form, and with such particulars as may be directed by the Treasury, and shall be audited by the Comptroller and Auditor General as public accounts in accordance with such regulations as the Treasury may make and shall be laid before Parliament together with his report thereon.

27 & 28 Vict.  
c. 25.

(6) For the purposes of this Act the expression "goods" has the same meaning as in the Naval Prize Act, 1864, and

the expression "members of His Majesty's Naval and Marine Forces" includes persons who are or have been members of His Majesty's Naval and Marine forces, and officers and members of the crews of His Majesty's ships of war, and the expressions "His Majesty's Naval and Marine Forces" and "His Majesty's ships of war," include forces and ships raised and provided by the Governments of any part of His Majesty's Dominions outside the United Kingdom, and the latter expression further includes any ship or vessel engaged in the naval service of His Majesty whether belonging to His Majesty or not, which the Admiralty declare is a ship of war for the purposes of this section, either generally or during such period or whilst engaged on such service as may be specified by the Admiralty.

2.—(1) For the purposes of this Act there shall be constituted a tribunal, in this Act referred to as the tribunal, consisting in the first instance of the following persons, namely, the Right Honourable Walter George Frank Baron Phillimore of Shiplake (who shall be chairman), Admiral of the Fleet, Sir George Astley Callaghan, G.C.B., G.C.V.O., and the Right Honourable Sir Guy Douglas Arthur Fleetwood-Wilson, G.C.I.E., K.C.B., K.C.M.G., and if any vacancy occurs amongst the members of the tribunal it shall be lawful for His Majesty to appoint a person to fill the vacancy :

Constitution of  
tribunal.

Provided that in the case of a vacancy in the chairmanship the person appointed to fill the vacancy shall be a person who holds or has held high judicial office within the meaning of the Appellate Jurisdiction Act, 1876, as amended by the Appellate Jurisdiction Act, 1887, and provided that at least one member of the tribunal shall be an officer of the Royal Navy or Royal Marines.

39 & 40 Vict.  
c. 59.  
50 & 51 Vict.  
c. 70.

(2) The tribunal may act by two of its members notwithstanding a vacancy in its members, and may make rules regulating its own procedure and shall have a seal which can be judicially noticed.

(3) The tribunal may appoint a clerk who shall receive such salary or other remuneration as the Treasury may determine.

(4) The tribunal shall have all such powers, rights, and privileges as are vested in the High Court or in any judge thereof, on the occasion of any action, in respect of the following matters :—

- (a) The enforcing the attendance of witnesses and examining them on oath, affirmation, or otherwise, and the issue of a commission or a request to examine witnesses abroad ; and
- (b) The compelling the production of documents ; and
- (c) The punishing persons guilty of contempt ;

and a summons signed by the chairman of the tribunal may be substituted for and shall be equivalent to any formal process capable of being issued in any action for enforcing the attendance of witnesses and compelling the production of documents.

Provisions as to prize bounty.

3.—(1) The percentage of the sums distributable as prize bounty payable to ships' agents by way of remuneration shall be such percentage not exceeding one per cent. as the Prize Court may having regard to the expense and trouble involved determine to be just.

(2) The persons entitled to share in the distribution of any prize bounty under section forty-two of the Naval Prize Act, 1864, shall include and shall be deemed as from the commencement of the present war to have included the officers and crew of such of His Majesty's aircraft, operating under the directions of the Admiralty, as are determined by the Prize Court to have been actually present at, and to have assisted in, the taking or destroying of an armed ship of any of His Majesty's enemies.

Payment of prize money and prize bounty in certain cases. 28 & 29 Vict. c. 111.

4. Where, in pursuance of the Navy and Marines (Property of Deceased) Act, 1865, on the death of any person being or having been an officer seaman or marine, the amount to the credit of the deceased in the books of the Admiralty in respect of moneys payable by the Admiralty, being an amount not exceeding one hundred pounds, has been disposed of without representation to the deceased being taken out, and subsequently in consequence of an award of prize money or prize bounty there becomes payable to the estate of the deceased an amount less than one hundred pounds, the amount of such money or bounty may be disposed of by the Admiralty if they think fit in accordance with the said Act without requiring representation to the deceased to be taken out, notwithstanding that the amount of the money or bounty is such that when added to the other sums previously paid by the Admiralty the aggregate exceeds one hundred pounds.

Short title and savings.

5.—(1) This Act may be cited as the Naval Prize Act, 1918.

(2) Nothing in this Act shall be construed as prejudicing or affecting any prerogative or right of His Majesty to grant or release any ship or goods subject to prize jurisdiction, or the proceeds of sale thereof, or money representing the same, or to grant or release any droits of the Crown.

## SCHEDULE.

### Section 1 (1).

### PART I.

#### PAYMENTS INTO THE NAVAL PRIZE FUND.

(1) Any money in court paid in respect of any ship or goods condemned by any prize court, whether in the United Kingdom or elsewhere, being droits of the Crown, together with any accumulations of interest accrued on any such money.

(2) Where any ship or goods condemned by any prize court, being droits of the Crown, have, whether before or after the condemnation, been delivered to the Crown with or without the payment of any money into court or any undertaking to pay any money into court, a sum equal to the value of the ship or goods at the date of delivery together with interest from the date of such delivery, after deducting any money which has been paid into court, or which may be payable under any such undertaking in respect of the ship or goods in question.

(3) Any sum paid in pursuance of any bond agreement or undertaking executed or given in favour of the Crown in respect of any ship or goods subject to prize jurisdiction which are droits of the Crown or which if condemned would have been droits of the Crown or in respect of the proceeds of sale or money representing any such ship or goods, or in consideration for any money paid out of the Naval Prize Fund.

(4) Any sums received from any of His Majesty's Allies under any convention relating to prizes captured during the present war.

(5) Any other sums received in respect of ships and goods subject to prize jurisdiction which the tribunal consider may reasonably be treated, having regard to the principles and practice heretofore observed by prize courts, as being sums to which, had there been a grant of prize to captors, captors would have been entitled.

## PART II.

### CHARGES ON NAVAL PRIZE FUND.

(1) All expenses (not otherwise recovered) incurred by any prize court, or incurred in connection with, or with a view to prize proceedings (other than legal expenses), in relation to ships and goods in the custody of the court which are droits of the Crown or which if condemned would have been droits of the Crown, whether the same are condemned or are released, and whether such expenses were incurred before or after condemnation, except where, having regard to the special circumstances of the case, the tribunal may otherwise direct.

(2) Any reward or remuneration awarded to any officer or person seizing or taking any ship or goods or part thereof which are droits of the Crown or which if condemned would have been droits of the Crown, or giving information in relation thereto, or leading to the condemnation thereof.

(3) Any sum payable to any of His Majesty's Allies under any convention relating to prizes captured during the present war.

(4) Any claims in respect of any ship or goods subject to prize jurisdiction, which are droits of the Crown or which if condemned would have been droits of the Crown or of the proceeds of sale of, or money representing, any such ship or goods which the Treasury on the recommendation of the Prize Claims Committee may have paid or may hereafter pay, being claims of a nature that had they been established in prize proceedings would have been ordered by a prize court to be paid by the persons entitled to the ship or goods, or out of the money representing the same.

(5) Any other costs, charges, expenses and claims which the tribunal consider may reasonably be treated, having regard to the principles and practice heretofore observed by prize courts, as being costs, charges, and claims which, had there been a grant of prize to captors, captors would have been liable to pay.

(6) The remuneration of the clerk of the tribunal and any other expenses of the tribunal to such amount as the Treasury may sanction.

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